

Personal appearance and appearances via ZOOM are available.

Probate Calendar for Friday, July 10, 2026

9:00 a.m. in Department Paso 2, with Judge Michael C. Kelley (by Michele L. Rowe, Judge Pro Tem) presiding

No.	Case Number	Case Name	Type of Matter	Probate Notes
<u>The following matters are OFF CALENDAR/ DISMISSED/ TERMINATED or CONTINUED:</u>				
14	26PR-0178	In Re: Josue Baranda-Gallardo	Minors Compromise Filed 05/26/2026	CONTINUED LIST: <i>The matter is continued to October 9, 2026 at 9:00 a.m. in P2. All additional materials are due by September 3, 2026. The following is noted:</i> 1. <u>Compromise generally.</u> <i>The Petition generally appears ready for approval. Nevertheless, as the Pooled Trust contains many issues as noted below, a continuance of the entire Petition is needed to complete the full approval.</i> 2. <u>Pooled Trust.</u> a. <u>Joinder Agreement.</u> i. <i>The Joinder Agreement, item 5 and the fee table do not comply with California Rules of Court rule 7.903, subsection (c)(8). The Order of this Court must specifically note that the Court is not agreeing to any fees at this time, but will award reasonable fees at the time of the first account review or upon other Petition.</i> ii. <i>The Court requires a completed, but unsigned copy of the Joinder Agreement for review. The Joinder</i>

				<i>Agreement provided does not disclose the remainder beneficiary designation or the beneficiary advocate/ successor advocate names. It does not complete anything other than the fee schedule. It is unclear what the Court would be approving based on this document. The proposed completed form, with all nominations proposed, is needed.</i> <i>b. Master Trust</i> <i>i. Clarification is needed on the Trust sections prohibiting the beneficiary from amending the Trust, even with court approval. These sections appear throughout the Master Trust numerous times with firm language that the Trust Beneficiary may not, under any circumstances, amend the trust. California Rules of Court, rule 7.903 subsection (c)(2) only prohibits modification or revocation without Court approval. Thus, it appears this Trust prohibits the beneficiary from even Petitioning the Court for amendment or modification, which is not the standard required by the California Rules of Court. It is noted other sections of the Master Trust discuss this Court approval process under the Rules of Court, for the Trustee or Non-Profit, but the prohibition on even a Petition by the Trust beneficiary is not discussed.</i>
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				<i>Clarification is needed in some way to note that the Court may be Petitioned to amended or modify, by the Trust Beneficiary.</i> <i>ii. Sections 6.8 and 9.8 appear to allow for full modification of this trust, for transfer to another trust, without approval by a Court. This appears to be in violation of California Rules of Court, rule 7.903, subsection (C)(2). This section should be deleted or modified to require Court pre-approval. It is noted that section 12.4 indicates that court supervised trusts required court approval, but it is not clear by the balance of the terms that this provision supersedes and controls over other contradictory provisions.</i> <i>iii. Sections 6.2, 7.4. D., 7.6, 9.2, 9.5.D, and 10.6 all discuss compensation for attorneys and the Trustee. Nevertheless, not all these sections require Court review under Cal. Rules of Court, rule 7.903, subsection (c)(8) before payment. It noted a few other sections do specifically limit fees based on review, but at least one requires the set-up fees be paid, without any Court oversight or approval to determine just and reasonableness. Modification is needed.</i> <i>iv. Sections 10.1 (Trust Administrative powers) and section 11.3 appear to conflict. The provisions under</i>
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				<i>section 10.1 provide investment powers within the terms, and not just administrative provisions. Revision will be needed.</i> v. <i>Section 10.5 third paragraph, last line, the Periodic payments “may” be permitted, not “shall”. The word “shall” should be replaced to match the statue and Rules of Court.</i> vi. <i>Section 10.11 subsection B should be modified to state that the Trustee must not borrow, lend money, give security, lease, convey or exchange any property of the estate without prior authorization of a Court period. The \$20,000 or greater limit should be removed. These powers should not be exercised without Court approval under the investment authorities provided in Probate Code section 2574.</i> vii. <i>Section 13.1 should also indicate that venue for this subtrust/ Beneficiary IBA is in San Luis Obispo County. Any change of venue must be completed via a noticed Petition and Order of this Court, prior to said change.</i> c. <i>Bond. Bond of \$95,544.39 appears necessary based on section 10.4 and California Rules of Court, rule 7.903 subsection (c)(5). Nevertheless, it is unclear from the materials provided if the Trustee is claiming it is exempt from bond as a corporation? The Petition is unclear what is requested.</i>
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				d. <i>A revised proposed order is needed incorporating the terms of the Trust and any orders made for the establishment of the Trust.</i>
<u>APPROVED LIST</u>				
7	25PR-0216	Guardianship of: Nathaniel Galvan	Petition Filed 7/3/2025 - Guardianship PERSON; Cont'd 10/24/25 & 2/27/26	APPROVED LIST: <i>It is recommended the Petition be approved. The Court ordered on February 27, 2026 for the minor's mother to file a written objection to the Petition by April 30, 2026. Nothing has been filed. It is recommended the Court deem the Objection waived pursuant to California Rules of Court, rule 7.801.</i>
10	25PR-0350	Conservatorship of: Alex Golden	Petition Filed 10/15/2025 - Limited Conservatorship PERSON; Cont'd 2/27/26	APPROVED LIST: <i>It is recommended the Petition be approved, subject to the following: It is recommended that Court-Appointed Counsel's request for attorney's fees of \$396 and costs of \$5.95 be approved, to be paid by San Luis Obispo County.</i>
<u>HEARING LIST</u>				
1	15PR-0272	Conservatorship of: Taylor Herrick	Order to Show Cause re: Bond (Increased)	HEARING LIST: <i>Zoom or personal appearance is required. It is noted that a Rider was submitted on June 10, 2026, but it does not correct the issue with the Obligee as discussed at the last hearing. The Court also does not have a copy of the master bond in the file, for which this bond rider is based. It is likely that the original bond also has the incorrect Obligee. The original bond no. 62773059 is needed. The Obligee should be as stated under Probate Code section 2320 (b) "all persons interested in the conservatorship estate".</i>
2	20PR-0275	Guardianship of: Krew Sims-Pierce	Petition Filed 10/30/2024 -	HEARING LIST: <i>Zoom or personal appearance is needed. The parties indicated at the hearing on</i>

			Confidential Hearing; Cont'd 6/26/25, 8/22/25, 10/24/25 & 2/27/26	<i>February 27, 2026 that the matter has settled, but nothing has been filed.</i>
3	25PR-0025	Guardianship of: James Cook	Petition Filed 03/17/2026 - [DUE 6/26/26] Petition For Visitation; c/f 6/12/26 (Amanda Cook)	HEARING LIST: Zoom or personal appearance is needed. The following issues remain from the last hearing: 1. <i>Proof of service of Notice of Hearing has not been provided pursuant to Probate Code §1460. It is unclear if the current guardian is willing to waive proper service of this Petition in order to proceed with trial as currently scheduled.</i> 2. <i>A proposed Order is needed.</i>
4	25PR-0025	Guardianship of: James Cook	Petition Filed 03/17/2026 - [DUE 6/26/26] Petition For Visitation; c/f 6/12/26 (Anthony Cook)	HEARING LIST: Zoom or personal appearance is needed. The following issues remain from the last hearing: 1. <i>Proof of service of Notice of Hearing has not been provided pursuant to Probate Code §1460. It is unclear if the current guardian is willing to waive proper service of this Petition in order to proceed with trial as currently scheduled.</i> 2. <i>A proposed Order is needed.</i>
5	25PR-0188	Guardianship of: Issiah Serna	Petition Filed 8/6/2025 - Termination of Guardianship; Cont'd 10/31/25 & 3/6/26	HEARING LIST: Zoom or personal appearance is required. The following issues are noted: 1. <i>Proof of service of <u>Notice of Hearing</u> on the Petition for Termination was not located. See Probate Code sections 1460, 1510 subdivision (c) and 1601.</i> a. <i>Still missing:</i> i. <i>There are numerous proofs of service showing documents provided to the father of the minors, Fernado Serna Jr. None of those proofs of service provides the actual</i>

				<i>GC-020 and the date on the Notice of Hearing served.</i> <i>ii. Proof of service of Notice of Hearing was not located on:</i> <i>1. John Xavier (maternal grandfather) and</i> <i>2. Isaiah Ray Serna (brother)</i> <i>3. Fernando Serena Sr. (paternal grandfather).</i> <i>Notice served on June 29th was for the guardianship Petition only.</i> <i>iii. If a party cannot be located, a declaration of diligent search is needed. It is noted some declarations have been filed, but they do not appear to explain current efforts to find parties. Rather, they only indicate parties cannot be located without addressing efforts taken.</i> <i>b. Recommended to accept, based on the Declaration of Due Diligence provided.</i> <i>i. Notice on Elijah Serna. Based on the last filing, dated June 29th showing rejection of the mailing at the known address, the declaration of diligent search filed February 13, 2026 is recommended for acceptance.</i> <i>ii. Notice on Aliana Marie Serna, mother. It is recommended the Court accept the Declaration of Diligent Search provided on July 2, 2026.</i>
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6	25PR-0188	Guardianship of: Issiah Serna	Petition Filed 8/6/2025 - Guardianship PERSON; Cont'd 10/31/25 & 3/6/26	HEARING LIST: Zoom or personal appearance is required. The following issues are noted: 1. <i>Proof of service of <u>Notice of Hearing</u> on the Petition for Termination was not located. See Probate Code sections 1460, 1510 subdivision (c) and 1601.</i> a. <i>Still missing:</i> i. <i>There are numerous proofs of service showing documents provided to the father of the minors, Fernando Serna Jr. None of those proofs of service provides the actual GC-020 and the date on the Notice of Hearing served.</i> ii. <i>Proof of service of Notice of Hearing was not located on:</i> 1. <i>John Xavier (maternal grandfather) and</i> 2. <i>Isaiah Ray Serna (brother).</i> iii. <i>If a party cannot be located, a declaration of diligent search is needed. It is noted some declarations have been filed, but they do not appear to explain current efforts to find parties. Rather, they only indicate parties</i>

				<i>cannot be located without addressing efforts taken.</i> <i>b. Recommended to accept, based on the Declaration of Due Diligence provided.</i> <i>i. Notice on Elijah Serna. Based on the last filing, dated June 29th showing rejection of the mailing at the known address, the declaration of diligent search filed February 13, 2026 is recommended for acceptance.</i> <i>ii. Notice on Aliana Marie Serna, mother. It is recommended the Court accept the Declaration of Diligent Search provided on July 2, 2026.</i> <i>2. At the October 31st hearing, the Court instructed Petitioner to provide notice of the subpoenaed records to opposing counsel. Nothing has been provided. The Court, at the hearing on October 31st indicated it would not release the records at that time. It is unclear why the subpoenas have not been served on the guardian yet.</i> <i>3. An Objection has been filed.</i>
8	25PR-0221	Conservatorship of: Evelyn Cunningham	Petition Filed 7/11/2025 - Conservatorship PERSON; Cont'd 10/27/26 & 2/27/26	HEARING LIST: Zoom or personal appearance is needed. An Amended Petition was filed on April 17, 2026. The following is noted: <i>1. Proof of service of the Citation does not appear to be for the Amended Petition, which was filed on April 17, 2026. The citation filed on May 18th cites the old February 27th hearing date, which was associated with the prior Petition version. A new citation was never issued by the Court for this date on the Amended Petition.</i> <i>2. The Court Investigator is still unable to complete her report due to missing paperwork in the file. The</i>

				<i>Court cannot proceed until the parties meet with the Court Investigator. The parties should be prepared to discuss why this has not occurred after a year from the original filing date.</i> 3. <i>The Court Appointed Attorney Report has not been provided.</i> 4. <i>Points and Authorities are needed on the request to remove or terminate the power of one agent under the power of attorney. See Probate Code section 4206 for application. It is unclear what authority the Court has to take the action requested.</i> 5. <i>The proposed conservatee must appear under Probate Code section 1825 for the warnings under Probate Code section 1828.</i> 6. <i>Bond of \$277,394.90 appears acceptable based on the personal property alleged, but the information provided in the balance of the Petition discusses real property owned by the proposed conservatee. Are there other assets not listed in section 3.e. of the Petition? It is understood if Probate Code section 2591 powers are not requested, so those assets would not be included in the bond calculation. Nevertheless, information is needed on the assets generally.</i> 7. <i>An Objection has been filed.</i>
9	25PR-0236	Guardianship of: Aubree Hafler	Petition Filed 7/30/25 - Guardianship - Person; Cont'd 10/31/25 & 3/6/26	HEARING LIST: Zoom or personal appearance is required. The following issues remain from the last two hearings: 1. <i>Proof of service of Notice of Hearing is required by Probate Code section 1511. The proof of service of Notice of Hearing filed on June 16, 2026 is incomplete. Notice was not located on the minor, who is over 12, each parent, and the other relatives listed in the Petition. If a party's</i>

				<i>whereabouts are unknown, a declaration of diligent search is needed.</i> 2. <i>It is recommended the Court set an OSC re: Dismissal for Petitioner's failure to address the probate notes for two hearings.</i>
11	26PR-0061	Conservatorship of: Alex Harris	Petition Filed 03/04/2026 - Petition for Appointment of Conservator Filed - Person Only	HEARING LIST: Zoom or personal appearance is needed. The following is noted: 1. <i>The Court Appointed Attorney Report has not been filed.</i> 2. <i>The Court Investigator Report has not been filed.</i> 3. <i>The Petitioners should be prepared to discuss the powers requested. Tri-Counties does not support all the powers.</i> 4. <i>The proposed Conservatee must appear at the hearing to receive the warnings under Probate Code section 1828. (Prob. Code, §1825.)</i>
12	26PR-0070	Conservatorship of: Suzanne Ritcheson	Petition Filed 03/05/2026 - Petition for Conservatorship - Person Only	HEARING LIST: Zoom or personal appearance is needed. The following is noted: 1. <i>Petition issues:</i> a. <i>Item 1.d. is marked regarding powers under Probate Code section 2590. An estate is not requested. Attachment 1.d. discusses powers that are not found under Probate Code section 2590 or are inapplicable because an estate is not involved. For example, Probate Code section 2950 or 2951 allows powers to void documents. It is unclear why the power to sell real property or let or lease estate property would apply, or why the petitioner would need to hire accountants or investment managers to manage assets not under the control of this conservatorship. All powers requested under section 1.d. are recommended for denial. It is unclear what is requested.</i>

				<i>b. Item 1.e is marked, but item 1.e. discusses powers having to do with estate management. NO estate is requested. This power is recommended for denial.</i> <i>c. Item 1.f is marked, but item 1.f. does not explain what specific additional powers are requested for the care, treatment, and welfare of the proposed conservatee. This section is where one asks for additional powers, beyond those automatically granted. Clarification is needed. See Probate Code section 2358.</i> <i>d. Item 1.g. is not marked, but section 1.f appears to ask for some kind of ability to care for or handle medical treatment. What is being requested? See item 1.f.</i> <i>2. The Court Appointed Attorney Report has not yet been filed.</i> <i>3. The Court Investigator Report has not yet been filed.</i> <i>4. An Objection has been filed.</i> <i>5. A proposed Order is needed.</i> <i>6. Proposed letters are needed.</i> <i>7. The proposed Conservatee must appear at the hearing to receive the warnings under Probate Code section 1828. (Prob. Code, §1825.)</i>
13	26PR-0071	In Re: Olivia Stober	Petition Filed: 02/13/2026, Minors Compromise; Cont'd 4/3/26 & 4/24/26	HEARING LIST: Zoom or personal appearance is required. The following issues are noted: <i>1. Item 3 of the Amended Petition is incomplete. One of the boxes must be checked. It appears from the original Petition filed February 25, 2026 that this claim is not the subject of a pending action or proceeding. Confirmation is needed.</i>

				2. <i>Petitioner should appear via Zoom or in person for examination under California Rules of Court, rule 7.952.</i> 3. <i>If the matter is approved, the Court will also set an OSC re: Proof of Annuity for August 28,2026 at 9:01a.m. in P-2.</i>
15	26PR-0210	In Re: Stephanie Ramirez	Minors Compromise Filed 6/11/2026	HEARING LIST: Zoom or personal appearance is required. The following issues are noted: 1. <i>Clarification is needed regarding Item 12b(5)(b)(i) of the Petition. The supporting statement provided as Attachment 12 does not match the alleged reduction accepted by the provider.</i> 2. <i>The minor and Petitioner should appear via Zoom or in person for examination under California Rules of Court, rule 7.952.</i> 3. <i>If the matter is approved, the Court will also set an OSC re: Proof of Deposit for September 4, 2026 at 9:01 a.m. in P-2.</i>
16	21PR-0359	Conservatorship of: Judith Parks DiFranco	Hearing Filed 04/23/2026 - Declaration of Jonas Bailey in Response to Returned Ex Parte Petition for Final Discharge and Order	HEARING LIST: <i>This matter was placed on calendar at the request of the attorney. The Court still awaits a receipt showing transfer of the surcharges, which total \$80,380.53, to the estate of Judith Parks DiFranco. This is still needed before the Ex parte Petition for Final Discharge of the Conservator will be signed, as the surcharge is an asset for transfer per the Court order. This information was conveyed to the Petitioner's attorney on numerous occasions. The surcharge is not moot as the Petitioner, as conservator, was surcharged in this matter, and the Court ordered transfer of the order/judgement to the probate estate. It is understood the probate estate has closed, but the omnibus clause in that matter will distribute the order</i>

				<i>to the proper beneficiary. The final requirement in this case is to transfer all assets of the conservatorship estate to the probate estate as ordered by this Court. No appearance is needed if a signed receipt showing the transfer of the surcharge order, is provided. Otherwise, appearance is needed.</i>
17	26PR-0044	In Re: Zachary Swift	Order to Show Cause re: Proof of Annuity	HEARING LIST: Zoom or personal appearance is required. The proof of purchase of annuity does not match the amount ordered.
18	26PR-0045	In Re: Darcy Swift	Order to Show Cause re: Proof of Annuity	HEARING LIST: Zoom or personal appearance is required. The proof of purchase of annuity does not match the amount ordered.
19	26PR-0046	In Re: Kyler Swift	Order to Show Cause re: Proof of Annuity	HEARING LIST: Zoom or personal appearance is required. The proof of purchase of annuity does not match the amount ordered.
20	PR020240	Conservatorship Of: Rebecca Kappmeyer	Order to Show Cause Re Court Investigator's Review Report Filed 5/21/2026	HEARING LIST: Zoom or personal appearance is required.
21	PR040048	Conservatorship Of: Rebecca Bird	Order to Show Cause Re Court Investigator's Review Report Filed 5/21/2026	HEARING LIST: Zoom or personal appearance is required.

Subject to the rules below, attorneys and parties to a case may now contact the Probate Research Department using the following email: probate@slo.courts.ca.gov.

The following rules apply to use of the foregoing email address. An email that does not comply with the requirements below may not be reviewed.

1. Emails must be related only to a Probate Note (past or present).

- a. The following exceptions apply: (1) A party or attorney has specifically received an email from the Court on an issue requiring response; or (2) the Court directed an email be sent to the Probate Research Department (Examples: Solicited email from a bench officer or a Court Attorney or information ordered to be provided via email by bench officer in Court).

2. **Emails must contain:**

- a. **Subject Line: Hearing Date, Time, Department, Case Number and Case Name (Example: 10/1/19, 9:00, D99, 18PR0000, Estate of John Smith).**
- b. **First Line of Email Body: Case Number, Case Name, and Description of the pleading on the calendar.**
- c. **Reason for Request.**
- d. **No Attachments.**

3. **Further, email inquiries must conform to the following guidelines:**

- a. Questions must be from an attorney or party on the case.
- b. The Court's response after the initial reply is limited to one email message per calendar matter, per hearing.
- c. The body of the email (Reason for Request under item 2.c.) is limited to (5) lines to each deficiency or issue.
- d. Emails may only inquire into *clarifications* regarding the Probate Note. This includes clarifying language, code sections, court rules and policies related to the Probate Note. Disputes regarding requirements or issues raised in the Probate Note may not be made via email.
- e. Emails advising the Court of possible oversights may be sent.
- f. **Continuances may not be requested via the probate email address.**

4. **This email procedure is NOT to be utilized for:**

- a. Any requests for legal advice (including, but not limited to, how to clear the Probate Note), case management, and/or a recommendation for an attorney.
- b. Confirmation of documents received by the Court. Please refer to the conformed copy of your filed document to confirm the Court's receipt. If you have not received a conformed copy of your document, please contact the Civil Clerk's Office.
- c. Confirmation that documents have been reviewed.

5. **Response Time.** All correspondence will be addressed on a priority basis according to the hearing date. The Probate Research Department will make every effort to respond within two Court days of receipt of the email.